

Indian Constitution



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What is Constitution:

A constitution means a document having special legal sanctity which sets out the framework and principal functions of the government. Constitution of a country gives idea about basic structure of the political system under which its people are to be governed. It defines the power of the main organs of the state, demarcates their responsibilities and regulates their relationships with each-other and with the people. It can also be termed as “Fundamental Law” of a country which reflects people’s faith and aspirations.



Introduction to Constitution of India



The word 'Constitution' is of French origin which is generally used for regulation and orders. The Constitution of any country is the fundamental law of the land with greater authority and sanctity.

- On 26 November 1949, "*We, the People of India*", resolved "to adopt, enact and give to ourselves" the Constitution of independent India.
- The Constitution of India lays down a structure for political, economic and social democracy.
- In commemoration of the 125th Birth Anniversary of Dr Bhimrao Ambedkar on 26 November in the year of 2015, both the Houses of Parliament held dedicated sittings for discussion on "Commitment to India's Constitution" as a part of Celebrations. Since then, the day of 26 November is celebrated as the *Constitution Day* every year.
- The Constitution of India is the supreme law of the land, on the basis of which the entire governance system works.

History of Indian Constitution



On 29 August 1947, the Drafting Committee was elected by the Constituent Assembly under the Chairmanship of Dr B.R Ambedkar for preparation of a draft Constitution. The Constituent Assembly was able to complete the monumental task of drafting a Constitution for independent India within a period of less than three years- ***two years, eleven months and seventeen days***, to be exact. They produced a fine document, handwritten in 90,000 words. On the 26th day of November 1949, it could proudly declare on behalf of the people of India that we do HEREBY ADOPT, ANACT AND GIVE TO OURSELVES THIS CONSTITUTION. In all, 284 members actually appended their signatures to the Constitution as finally passed. The Original Constitution contained a Preamble, 395 Articles and 8 Schedules. The provisions relating to citizenship, elections, provisional Parliament, temporary and transitional provisions were given immediate effect. The rest of the Constitution of India came into force on 26 January 1950.

Framing of the Constitution



1. The Constitution of India was framed by a constituent assembly set up under the Cabinet Mission Plan of 1946.
2. The Assembly consisted of 389 members representing provinces (292), states(93) the Chief Commissioner Provinces (3) and Baluchistan (1).
3. The Assembly held its first meeting on December 9, 1946, and elected Dr. Sachhidannand Sinha, the oldest member of the Assembly as the Provisional President.
4. On December 11, 1946 the Assembly elected Dr Rajendra Prasad as its Permanent Chairman.
5. The strength of the Assembly was reduced to 299 following the withdrawal of the Muslim league members after the partition of the country.

Framing of the Constitution



6. The Constituent Assembly set up 13 committees for framing the constitution. On the basis

of the reports of these committees, a draft of the constitution was prepared by a seven-

member Drafting Committee under the Chairmanship of Dr B.R. Ambedkar.

7. The draft constitution was published in January, 1948 and people were given eight months

to discuss the draft and propose amendments. After the draft was discussed, the same was

finally adopted on November 26, 1949 and was signed by the President of the Assembly.

8. The major part of the constitution came into force on January 26, 1950

Framing of the Constitution



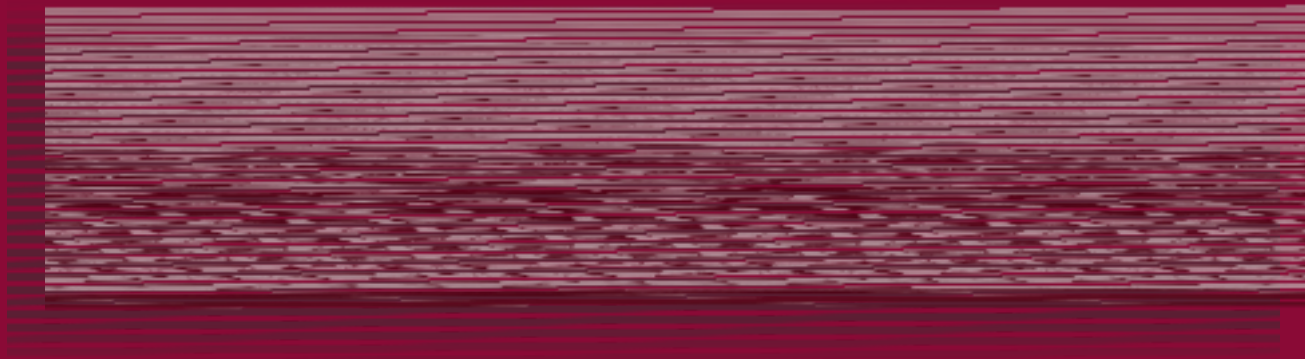
10. However, while adopting these features they made necessary modifications for its

suitability to the Indian conditions and avoided their defects.

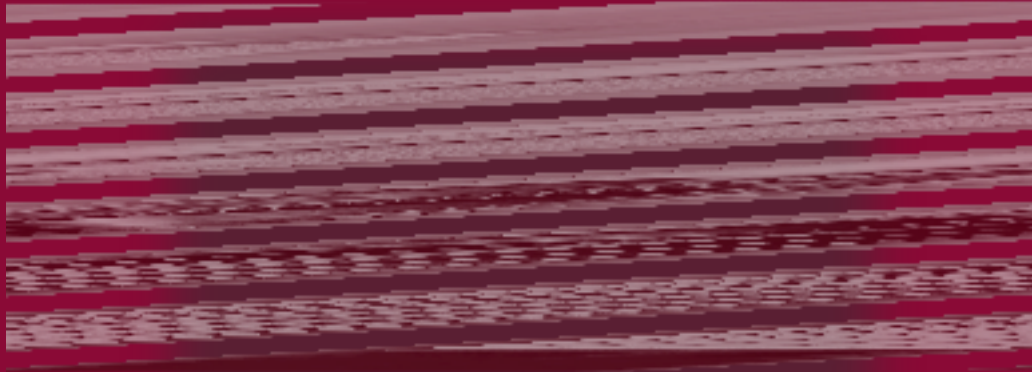
11. The constitutions which exercised profound influence on the Indian Constitution were

that of UK, USA, Ireland and Canada.

In short Indian Constitution incorporated the best features of several existing constitutions.

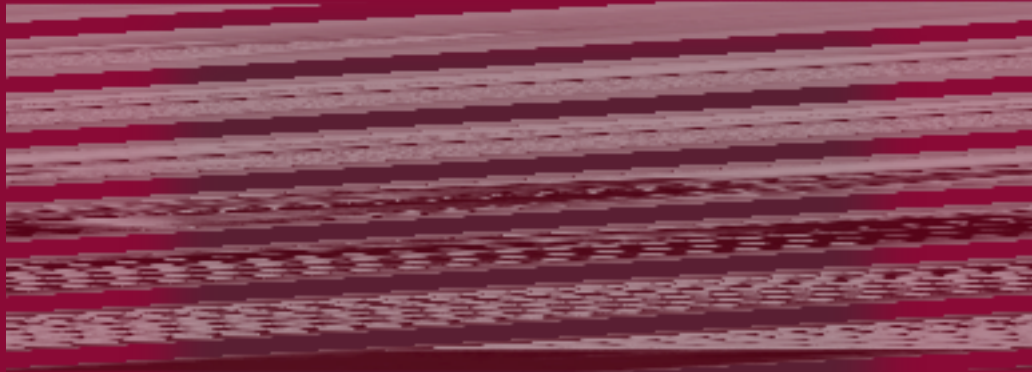


Structure:- The Indian Constitution originally consisted of 395 Art, 22 parts, 8 Schedules. But after the Constitution 104th Amendment Act, 2003, the Indian Constitution Consists of 448 Art, 25 parts, 12 Schedules.



The Indian constitution is unique in its content and spirit. The salient features of the constitution are as follows:-

- ❖ Lengthiest written Constitution - It is described as 'elephant size' constitution.
- ❖ Sovereignty resides in the people: The introduction of the constitution declares that the constitution of India was adopted and enacted by the people of India and they are the custodians of the republic.
- ❖ Parliamentary form of Government: The constitution of India establishes parliamentary form of government both at the centre and the states. In a Parliamentary form of government, the Prime Minister and council of Ministers are responsible for all their actions to the government, particularly to the Lower house, Lok Sabha. The Parliament keep control on executives by various means i.e. by asking questions by no confidence motion etc. Also in Parliamentary system there are two types of head; one is nominal and one is real. In India President is nominal and Prime- Minister is real head.



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- ❖ **Unique blend of Rigidity and Flexibility:** Though India has a written constitution; the Indian constitution is not as rigid as the American constitution. It has incorporated the flexible nature in the procedures for amendments. There are three methods by which the constitution is amended. The procedure for amendment is simple.
- ❖ **Fundamental Rights:** The fundamental Rights are guaranteed by the constitution to all its citizens through Part III of the constitution. One can approach the Supreme Court directly in case of violation of Fundamental Rights. There are certain restrictions on fundamental rights in the interests of public order, the sovereignty and integrity of India, public decency, morality etc.

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- ❖ Quasi – federal in nature: The nature of the Indian state is federal, in the sense that the powers are distributed between the Union and the state. But in times of emergency Government assumes a unitary character.

It is federal because:

1. It has two sets of government.
2. There is division of powers between the centre and the states.
3. There is independent judiciary.

It is unitary because:

1. It is described as “union of states”.
2. There is single citizenship.
- 3 There is single integrated judicial and administrative system.
4. There is integrated machinery for elections, audits.
5. State Governors are appointed and removed by President,
6. States depend upon the union’s grant – in – aid.
7. During emergency, it can be converted into unitary system.

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- ❖ **Independence of Judiciary:** The constitution has made Judiciary independent from legislature and executive. Judges are free from the interference of other organs of the government, so that judges can give judgement without fear and favour. The Indian Judiciary is independent as per the norms of separation of powers. The feature that goes with the independence of judiciary are direct appointment by the President, given decent salaries and perks, judges can not be removed simply by executive.
- ❖ **Fundamental Duties:** The Fundamental Duties are incorporated in the constitution through the 42nd amendment. A set of ten duties are incorporated as fundamental Duties under Article 51.

The constitution of India is one of the most remarkable constitutions in the world. It is a confluence of East and the West. With all these features, the Indian Constitution is a constitution best suited to the Indian environment. The Constitution has been helping India to organise and run her government and administration in an effective way both in times of peace and war. The basic structure of the Constitution i.e. its most fundamental features can be described as: Preamble, Fundamental Rights, Directive Principles, Secularism, Federalism, Republic, Independence of Judiciary, Rule of Law, and Liberal Democracy.

Preamble

The preamble to the constitution is based on the “objective resolution” drafted and moved by Pandit Nehru and adopted by constituent assembly.



Preamble

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"WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a {SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC} and to secure to all its citizens:

*JUSTICE, social, economic and political;
LIBERTY of thought, expression, belief, faith and worship; EQUALITY of
status and of opportunity;*





- The Preamble to the Constitution of India embodies and reflects the fundamental values, philosophy and objectives on which the Constitution is based.

Preamble serves the following purposes:-

- It discloses the source of the constitution.
- It lays down the date of the commencement of the constitution.
- It set out the rights and freedoms which the people of India wished to secure for themselves.
- It declares the nature of the government.



The following are the ideals and objectives of our Constitution as delineated in the Preamble:

Sovereignty: The opening words of the Preamble to the Constitution, 'We the People of India', announce to the world that the ultimate sovereignty rests with the people of India as a whole.

Socialism: There are several articles in the Constitution giving credence to the ideals of a Welfare State which stands to end all forms of exploitation in all spheres of existence.

Secularism: India is home to almost all the major religions of the world. The ideal of secularism in the Indian context implies that the State does not itself uphold any religion and protects all religions equally.



Democracy: The term 'democratic' is used in the Preamble in the broader sense embracing not only political democracy but also social and economic democracy. The people of India elect their governments at different levels (Union, State and local) by a system of universal adult franchise, with elections being held periodically to ensure the approval of the people to the governments. All the citizens, without any discrimination on the basis of caste, creed, colour, sex, religion or education, are allowed freedom of speech, thought and expression and association.

Republic: Our country ceased to be a Dominion and declared itself a 'Republic' since the making of the Constitution. The word 'Republic' implies that the Head of the State in India shall be an elected person and shall hold office for a fixed term. The President of India is the chief executive head of the country. A republic also means two more things: one, vesting of political sovereignty in the people and not in a single individual like a king; second, the absence of any privileged class and hence all public offices being opened to every citizen without any discrimination.



Justice: The term 'justice' in the Preamble embraces three distinct forms - social, economic and political, which are secured through various provisions of Fundamental Rights and Directive Principles.

Liberty: The Preamble secures to all citizens of India liberty of thought, expression, belief, faith and worship, as Fundamental Rights. However, as liberty does not mean 'license' to do what one likes, it has been made subject to reasonable restrictions as specified under article 19 of the Constitution.

Equality: Our Constitution assures equality: of status and opportunity to every citizen without any discrimination on the ground of religion, race, caste, sex or place of birth, by throwing open public places to all citizens, by abolishing untouchability, by abolishing titles of honour, by guaranteeing equality before the law and equal protection of the laws.



Fraternity: Fraternity stands for the spirit of common brotherhood. In the absence of that, a plural society like India would stand divided. Therefore, to give meaning to the ideals of justice, liberty and equality, the Constitution makes fraternity as one of the foremost objectives to be achieved.

Dignity of the Individual: Our Constitution acknowledges that all citizens, men and women, equally have the right to grow and progress. The Constitution seeks to achieve this object by guaranteeing equal fundamental rights to each individual and by making the State under the Directive Principles, to direct its policies towards securing the citizens, men and women equally.

Unity and Integrity: Our Constitution expects from all citizens of India to uphold and protect the unity and integrity of the country as a matter of duty. The Constitution lays emphasis on the ideal of fraternity which would foster unity amongst the citizens. Article 1 of Constitution describes India as a 'Union of States' to make it clear that States have no right to secede from the Union.



Constitution- A Cornerstone to Indian Democracy

The Constitution is, to use a Latin expression, our *suprema lex*. It is more than a collection of articles and clauses. It is an inspirational document, an ideal of the society that we are and even the better society we are striving to be. The Constitution of India encompasses in its fold the ideals and values of our civilizational heritage, as also the beliefs and aspirations that emerged out of our Freedom Struggle. The Constitution embodies the collective wisdom of the Founding Father of our Republic and, in essence, it represents the sovereign will of the people of India. The prime goal envisaged by the Constitution is that of a Welfare State as a pre-requisite for dignified human existence and good of all , with accountability as the lifeline.

Thanks!



Any questions?